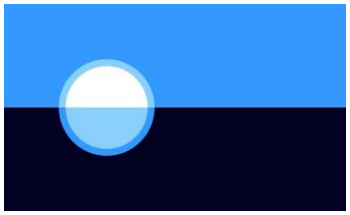
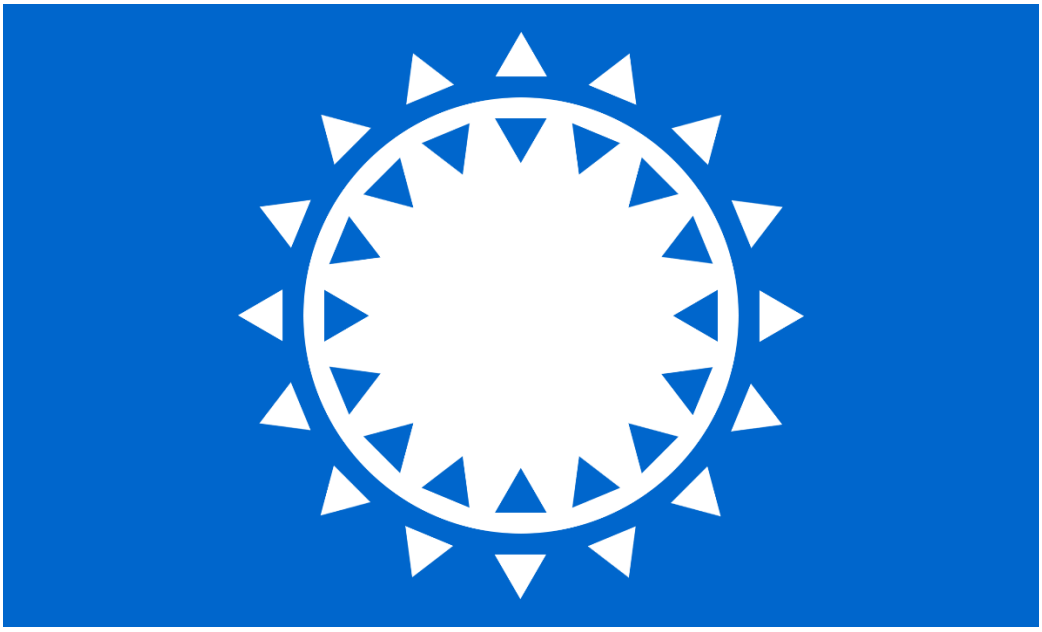


THE REPUBLIC OF CORTESIA DEL MAR

Azure Commonwealth Act



Useret

President of
Cortesia Del Mar

ItsAlreadyGold

Vice President of
Cortesia Del Mar

Preamble

Many peoples meet us here,
Coming from afar and near,
To make accord:
With willful word,
Form a union with those dear.

Fastly we shall form a bond,
Friendship to which all respond,
By happy choice,
Unite our voice,
Sure we'll stay forever fond.

None shall forsake who they are,
All shall win when one goes far,
So with great glee,
We invite thee:
Build with Cortesia Del Mar!

The Act

1. <u>Title and Commencement</u>

   (1) This act may be cited as the "Azure Commonwealth Act, 2025".

   (2) This Act comes into effect immediately upon passage by the National Forum.

   (3) Upon the enactment of this Act, proceedings must be undertaken in accordance with Section 6 to apportion the number of Commonwealth Court seats afforded to the Republic of Cortesia Del Mar within the soonest possible timeframe.

2. <u>The Azure Commonwealth</u>

   (1) The Azure Commonwealth (hereafter simply "the Commonwealth") is a limited extension of Cortesian jurisdiction for the purposes of facilitating intimate cultural, political, and economic union between foreign states and Cortesia Del Mar.

   (2) The Republic of Cortesia Del Mar is considered a member of the Azure Commonwealth.

   (3) The Azure Commonwealth exists even if the Republic of Cortesia Del Mar is its only member.

   (4) Members of the Azure Commonwealth other than the Republic of Cortesia Del Mar (hereafter "Commonwealth members") are not considered part of Cortesia Del Mar. Commonwealth members are independent entities which retain their right to self-governance.

3. <u>Terms of the Azure Commonwealth</u>

   (1) Commonwealth members are subject to the protections and obligations of Cortesian law and justice, *mutatis mutandis*, in accordance with Articles II, VI, VII, and XIV of the Constitution of Cortesia Del Mar.

(2) Any diplomatic obligations or entitlements specific to the Republic of Cortesia Del Mar are not inherited by Commonwealth members.

(3) The Azure Commonwealth may enter into diplomatic agreements only with the unanimous approval of State Representatives.

(4) All individuals meeting the criteria, *mutatis mutandis*, of Section 3(3)(a) of the Citizenship Act with respect to any member state, are entitled to residency (or equivalent) in each member state of the Commonwealth, *mutatis mutandis*. Individuals of this description are *not* entitled to citizenship (or equivalent), though they may receive it in accordance with a member state's domestic nationality law.

4. <u>Admission of States to the Azure Commonwealth</u>

(1) "States", for the purposes of this Act, refers to any independent foreign government, or subject government thereof.

(2) States may not be admitted to the Azure Commonwealth without their consent:

(a) Independent states (states with full sovereignty) may consent to admission to the Azure Commonwealth via formal treaty, or by any other process which affords a similar level of certainty in the state's consent.

(i) In cases where an independent state wishes to be admitted to the Commonwealth, but does *not* wish to admit one or more of its dependent states, this may be determined in the agreement. No additional consent requirement is imposed in this case.

(b) Dependent states (states with parent governments) may consent to admission to the

Azure Commonwealth only with the assent of their parent government; the consent of the dependent state, and the assent of the parent government, must meet the same standard as in (a).

(3) An agreement to admit a state to the Azure Commonwealth must specify a fixed number of Commonwealth Court seats that that state will be apportioned upon admission.

(4) Ratifying an agreement to admit a state to the Azure Commonwealth requires a two-thirds majority vote of State Representatives.

5. State Representatives

(1) Each distinct Commonwealth member may, by process of their internal governance, select one of their members meeting the criteria in 3(4) to serve as State Representative.

(2) One individual may not serve as State Representative for more than one member state at a time.

(3) Commonwealth members may recall and replace their State Representative at will.

(4) State Representatives must be able to liaise regularly and easily with the National Forum of Cortesia Del Mar and with each other, and be kept up-to-date on matters of import.

(5) When a vote is taken among the State Representatives of the Azure Commonwealth, the weight of each Representative's vote is equal to the number of Commonwealth Court seats that Representative's state is apportioned.

6. Reapportionment

(1) The number of Commonwealth Court seats apportioned to a member of the Azure Commonwealth may be amended

by a two-thirds majority vote of State Representatives.

7. <u>The Commonwealth Court</u>

(1) The Commonwealth Court is a special appellate court charged with ensuring that the terms and spirit of the Azure Commonwealth are upheld across all member states.

(2) The Commonwealth Court may only receive appeals of civil or criminal judgments made by member states of the Azure Commonwealth.

(3) The Commonwealth Court may only hear appeals for which the plaintiff stands an appreciable chance of successfully demonstrating that the terms of the Azure Commonwealth are substantially at odds with the judgment which they are appealing.

(4) Any civil or criminal judgment passed down by a member state of the Azure Commonwealth and impacting a plaintiff in the Azure Commonwealth may be appealed directly to the Commonwealth Court.

(5) The Commonwealth Court makes the final determination as to whether it may hear an appeal.

(6) In making judgments, the Commonwealth Court is to draw on the following sources of law, in order, with prior sources overriding latter ones:

(a) The terms of the Azure Commonwealth;

(b) The law and precedent of the member state where the lower judgment was made;

(c) Relevant Cortesian law and precedent, applied *mutatis mutandis* to the member state where the lower judgment was made.

8. <u>Commonwealth Court Judges</u>

(1) Each distinct Commonwealth member may, by process of their internal governance, appoint a number of their

members meeting the criteria in 3(4) to serve as Commonwealth Court judges.

(a) The number of judges they may appoint is the number that was determined as part of their admission, or by subsequent reapportionment.

(2) One individual may not serve as Commonwealth Court judge for more than one member state at a time.

(3) Commonwealth Court judges serve until either being recalled by the member state which appointed them, or being removed.

(4) Member states may recall and replace their Commonwealth Court judges at will.

(5) Commonwealth Court judges may be removed only on account of:

(a) Serious misconduct

(b) A serious conflict between their interests and those of judicial office or the Commonwealth

(c) Gross incompetence

(d) An inability to perform the functions of judicial office

(6) A simple majority vote of State Representatives may effect the removal of a Commonwealth Court judge.

(7) By default, a Commonwealth Court judge that has been removed cannot be re-appointed to the Commonwealth Court by any member state. A simple majority vote of State Representatives may end this prohibition.

9. <u>Secession of Commonwealth members</u>

(1) Commonwealth members may unilaterally leave the Azure Commonwealth at any time, subject to the same procedural standard as was applied to their accession.

(2) Upon confirmation that a Commonwealth member has met the standard in (1) and intends to secede, a period of not less than 48 hours must be afforded in which the Azure Commonwealth and the member in question may

conduct any affairs necessary to facilitate the secession adequately.

(a) This period may be ended prematurely by the consent of the seceding Commonwealth member (according to the standard in (1)) and a simple majority vote of the National Forum.

(3) Upon confirmation that a Commonwealth member has met the standard in (1) and intends to secede, their State Representative and Commonwealth Court judges are automatically recalled; they may not appoint new ones during the period specified in (2).

10. Removal of Commonwealth members

(1) Commonwealth members may be removed from the Azure Commonwealth by the Republic of Cortesia Del Mar, subject to a two-thirds majority vote of State Representatives.

(2) Upon the successful conclusion of a vote to remove a Commonwealth member, a period of not less than 48 hours must be afforded in which the Azure Commonwealth and the member in question may conduct any affairs necessary to facilitate the removal adequately.

(a) This period may be ended prematurely by the consent of the seceding Commonwealth member (according to the same standard in Section 5(1)) and a simple majority vote of the National Forum.

(3) Upon the successful conclusion of a vote to remove a Commonwealth member, their State Representative and Commonwealth Court judges are automatically recalled; they may not appoint new ones during the period specified in (2).

11. Amending this Act

(1) If the Azure Commonwealth Act is ever amended without the assent of a two-thirds majority vote of State Representatives, the Azure Commonwealth Act is immediately repealed.